

--- title: Court Filing Guide category: guidance description: How to file your England post-2026 possession claim filename: court_filing_guide.pdf ---



CASE ID

qa-complete-post-001

JURISDICTION

england

GENERATED

31 May 2026

Court Filing Guide

England possession claim guidance for the current pack.

COURT	York County Court and Family Court
LANDLORD	Daniel Mercer
TENANT	Ivy Carleton
PROPERTY	16 Willow Mews York YO24 3HX
GROUND(S) RELIED ON	Ground 8 - Rent arrears, Ground 10 - Any rent arrears
NOTICE SERVICE DATE	4 March 2026
EARLIEST PROCEEDINGS DATE	3 April 2026

The claimant seeks possession of 16 Willow Mews York YO24 3HX relying on Ground 8 (Rent arrears), Ground 10 (Any rent arrears).

Form 3A notice served on 4 March 2026, expiring on 3 April 2026, with proceedings not intended before 3 April 2026.

If the matter is not resolved after service of the Form 3A notice, the claim should be prepared for filing in York County Court and Family Court using the same factual basis and dates as the notice pack.

The default route in this pack remains the paper county court claim using Form N5 and Form N119. Possession Claim Online may be available only for eligible rent-arrears-only Section 8 claims, so treat that as a limited alternative rather than the general rule.

Before Issue

- Review the notice, proof of service, witness statement, and claim forms together before issue.
- Check that the same court name, notice timeline, and grounds appear consistently across the pack.
- Refresh the arrears schedule to the latest practicable date before filing.

What To File

- File Form N5, Form N119, the notice, and the supporting proof-of-service record together with any required fee or fee-remission material.
- Prepare an indexed bundle containing the tenancy documents, the served notice, service evidence, and the ground-specific documents relied on.
- Updated rent statement and arrears schedule
- Payment ledger, bank statements, or rent receipts
- Copies of payment demands or arrears correspondence

After Issue

- Monitor for any defence, witness evidence, or counterclaim and update the bundle so the response documents answer it directly.
- If circumstances materially change after issue, update the figures or factual chronology promptly and reflect that change consistently across the pack.
- Before the hearing, re-check every document that will be shown to the court for blank placeholders, stale dates, or unsupported allegations.

Ground 8 should only be advanced as a mandatory ground if the arrears still satisfy the threshold of £3,600.00 at the hearing.

Only treat Possession Claim Online as potentially available if the claim is genuinely confined to eligible rent-arrears-only Section 8 grounds. Mixed-ground or non-arrears claims should stay on the paper N5 and N119 route.

Do not rely on a stale arrears figure or assume that a mandatory arrears ground still applies if payments have reduced the balance.